

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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QUDIR CUMMINGS and JAMAUL GOMES,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD OFFICER
ANDREAS SARGENT, Shield No. 24928, and NYPD
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

Plaintiffs designate Kings
County as the place of trial.

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 16, 2021

Yours, etc.

Caillin Robin
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiffs
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER ANDREAS SARGENT, Shield No. 24928, 71st Precinct; 421 Empire
Boulevard, Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

QUDIR CUMMINGS and JAMAUL GOMES,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
ANDREAS SARGENT, Shield No. 24928, and NYPD
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs QUDIR CUMMINGS and JAMAUL GOMES, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 12, 2020, at approximately 8:00 p.m., plaintiffs QUDIR CUMMINGS and JAMAUL GOMES, while lawfully in the vicinity of 1531 Carroll Street in Brooklyn, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiffs were subjected to excessively tight handcuffs, causing them to suffer physical as well as mental and emotional injury. Plaintiffs were unlawfully imprisoned at the 71st Precinct Police Station for approximately 48 hours before they were released on their own recognizances. Plaintiffs were denied the right to due process and a fair trial for false charges, which were dismissed and sealed on or around March 16, 2021. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff QUDIR CUMMINGS (“Mr. Cummings”) is a resident of the State of New York.

3. Plaintiff JAMAUL GOMES (“Mr. Gomes”) is a resident of the State of New York.

4. NYPD OFFICER ANDREAS SARGENT, Shield No. 24928, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD OFFICER ANDREAS SARGENT, Shield No. 24928, was at all times relevant herein, assigned to the 71st Precinct.

6. NYPD OFFICER ANDREAS SARGENT, Shield No. 24928, is being sued in his individual and official capacities.

7. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 71st Precinct.

9. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on April 19, 2021.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On December 12, 2020, at approximately 8:00 P.M., Plaintiffs were lawfully present in the vicinity of 1531 Carroll Street in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiffs without probable cause or legal justification.

18. Plaintiffs were sitting in Mr. Gomes' vehicle, which was parked in a legal parking spot in the vicinity of 1531 Carroll Street.

19. Plaintiffs had been sitting in the parking lot with the vehicle idling for approximately two (2) minutes when they observed approximately six (6) unmarked police vehicles pull into the parking lot.

20. Approximately fifteen (15) defendant officers got out of the vehicles, approached the plaintiffs' car and began banging on the windows and shouting at the plaintiffs with their weapons drawn.

21. Defendant police officers opened the car doors, pulled the plaintiffs out, and slammed them up against the side of the vehicle.

22. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiffs, restraining them with metal handcuffs and subjecting them to an unlawful pat-down search.

23. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

24. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

25. Plaintiffs did not resist arrest.

26. When the plaintiffs asked why they were being arrested, they were told by defendant officers that they had been sitting in a stolen car; the car was in fact legally owned by Mr. Gomes.

27. The Defendant Officers then placed the Plaintiffs in the back of an NYPD vehicle and transported them against their will to the 71st Precinct, where they were unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

28. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

29. Mr. Cummings' handcuffs were applied so tightly that his wrists began to bleed while he was in custody at the 71st Precinct.

30. After approximately 24 hours at the 71st Precinct, plaintiffs were transferred to Kings County Central Bookings where they were again unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

31. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

32. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that the plaintiffs were guilty of Obstructing Governmental Administration.

33. On December 14, 2020, after approximately 48 hours in custody, Plaintiff Cummings was arraigned in criminal court and released on his own recognizance.

34. Plaintiff Gomes was declined to prosecute by the Kings County District Attorneys Office because they determined that no probable cause for a crime existed, and he was released directly from Central Bookings without ever seeing a Judge.

35. The charges which were falsely made against Plaintiff Cummings by the defendant officers were thereafter dismissed and sealed on or around March 16, 2021.

36. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely

arresting and imprisoning, humiliating, and denying Plaintiffs the right to due process and a fair trial.

37. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

38. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

40. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

41. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

43. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

47. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

49. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

50. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

53. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

55. Defendants lacked probable cause to search Plaintiffs.

56. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

60. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein

61. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

62. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

64. In withholding/creating false evidence against Plaintiffs, QUDIR CUMMINGS and JAMAUL GOMES, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

65. As a result of the foregoing, Plaintiffs, QUDIR CUMMINGS and JAMAUL GOMES, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, loss of earnings, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights

69. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The use of excessive force by defendants by, amongst other things, tightly handcuffing them, causing physical injury, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

71. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

72. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, QUDIR CUMMINGS and JAMAUL GOMES. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

78. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

80. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

81. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to unlawful search and other physical constraints.

85. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

89. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

91. Defendants commenced and continued a criminal proceeding against the plaintiffs.

92. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for the charges for which they were prosecuted.

93. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

94. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiffs' Fourth Amendment rights.

95. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

97. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, economic, and psychological injuries.

JURY DEMAND

98. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs, QUDIR CUMMINGS and JAMAUL GOMES, demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 16, 2021

By: Caitlin Robin
CAITLIN ROBIN, ESQ.
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Attorneys for Plaintiffs
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER ANDREAS SARGENT, Shield No. 24928, 71st Precinct; 421 Empire
Boulevard, Brooklyn, NY 11225

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York

August 16, 2021

Caitlin Robin
CAITLIN ROBIN